

HOUSE No. 3788

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas M. Stanley and Tricia Farley-Bouvier

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to explore alternative funding sources to ensure safe and reliable transportation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>1/14/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/28/2025</i>

HOUSE No. 3788

By Representatives Stanley of Waltham and Farley-Bouvier of Pittsfield, a petition (accompanied by bill, House, No. 3788) of Thomas M. Stanley and Lindsay N. Sabadosa relative to establishing a vehicle mileage user fee task force to explore alternative funding sources to ensure safe and reliable transportation. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to explore alternative funding sources to ensure safe and reliable transportation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) There shall be a vehicle mileage user fee task force to guide the
2 development and evaluation of a pilot program established pursuant to Section 3 to assess the
3 potential for mileage-based revenue collection for Massachusetts' roads and highways as an
4 alternative to the current system of taxing highway use through motor vehicle fuel taxes.

5 (b) The task force shall consist of the following members: the secretary of transportation,
6 or their designee, who shall serve as chair; 1 member to be appointed by the governor, who shall
7 be a registered civil engineer with no less than 10 years' experience; 1 member to be appointed
8 by the president of the senate, who shall be a representative of a transportation consumer
9 organization or other public interest organization; 1 member to be appointed by the minority
10 leader of the Senate, who shall be an expert in transportation data security, 1 member to be
11 appointed by the speaker of the house of representatives, who shall be a member of a regional
12 planning agency; 1 member to be appointed by the minority leader of the house of

representatives, who shall be a member of a business association; 1 member to be appointed by the Senate Chair of the Joint Committee on Transportation, who shall be an expert in the field of transportation finance; 1 member to be appointed by the House Chair of the Joint Committee on Transportation, who shall be a representative of a privacy rights advocacy organization.

(c) The task force may request the department of transportation to perform such work as the task force deems necessary to carry out its duties and responsibilities.

(d) The task force shall gather public comment on issues and concerns related to said pilot program; make recommendations to the department of transportation on the design and on the criteria to be used to evaluate a pilot program to test alternative approaches; and evaluate any pilot program implemented by the department under this Act.

(e) The task force shall conduct no less than 6 public hearings, 1 in each of the department's highway districts. The task force shall provide interested persons with an opportunity to submit their views orally and in writing and the department may create and maintain a website to allow members of the public to submit comments electronically and to review comments submitted by others.

SECTION 2. (a) The Massachusetts Department of Transportation shall develop, implement and oversee no less than one statewide pilot program to assess owners of motor vehicles a user fee that is based on the number of miles traveled on roads in this state by those motor vehicles.

(b) The pilot program shall include no less than 1,000 volunteers across the commonwealth who shall be representative of drivers of trucks, passenger, and commercial vehicles and throughout the commonwealth, who will have on-board vehicle-mileage-counting

equipment added to their vehicles, administered in a manner the department of transportation deems appropriate.

(c) The pilot program shall test the reliability, ease of use, cost and public acceptance of technology and methods for:

(1) counting the number of miles traveled by particular vehicles;

(2) reporting the number of miles traveled by particular vehicles; and

(3) collecting payments from participants in the pilot programs.

(d) The pilot programs shall also analyze and evaluate the ability of different technologies and methods to:

(1) protect the integrity of data collected and reported;

(2) ensure drivers' privacy; and

(3) vary pricing based on the time of driving, type of road, proximity to transit, vehicle fuel efficiency, participation in car-sharing or pooling or income of the driver.

(e) The pilot program shall last no less than one year.

(f) The department shall refund motor vehicle fuel taxes paid by participants in pilot programs under this Act or otherwise compensate participants in pilot programs under this Act to ensure that participants are not required to spend more on fees or taxes than if they had not participated in the program. Identifying information about participation in the pilot programs shall not be public and shall be exempt from disclosure under section 10 of chapter 66 of the general laws.

(g) The department shall submit an application to the United States Department of Transportation for funding in federal fiscal year 2026 from the Strategic Innovation for Revenue Collection program established in Section 13001 of the Infrastructure Investment and Jobs Act. If the application is not successful, the Massachusetts Department of Transportation shall thereafter apply in each federal fiscal year in which grants are made available for demonstration projects under this federal program or until the application results in funding for the vehicle miles traveled pilot program, whichever occurs first.

SECTION 3. the Massachusetts Department of Transportation shall examine and submit a report to the clerks of the house of representatives and senate, the house and senate ways and means, and the joint committee on transportation on the initial result of the statewide pilot program no later than three years from passage of this act. The examination and report shall include, but not be limited to, (i) the feasibility of permanently assessing a vehicle mileage user fee; (ii) an evaluation of the impacts of such a fee on the economy, the environment, and traffic congestion; (iii) a comparison to other potential alternatives or supplements to the gas tax; and (iv) the department's recommendations and any proposed legislation necessary to carry out its recommendations into effect.